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## Appeal Decision

Site visit made on 20 August 2026

by **J Smith MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 25 August 2026

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**Appeal Ref: 6010751**

**Land off Carr Lane, Alderley Edge SK9 7SL**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Daniel Ingham against the decision of Cheshire East Council.
  - The application Ref is 25/1399/FUL.
  - The development proposed is an agricultural barn to support agricultural use of the site.
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### Decision

1. The appeal is dismissed.

### Preliminary Matters

2. The evidence suggests that the appeal has been made retrospectively. During my site visit, it was confirmed that the development under consideration appeared to be in general accordance with the plans submitted. I have therefore considered the appeal on a retrospective basis.
3. A revised version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. I have considered its amendments against the December 2024 version, which was before the parties when submitting their evidence. Although there have been significant amendments to its layout and formatting such that previously cited paragraph references are no longer relevant, other changes are not substantive or determinative to the outcome of this appeal. I have therefore not gone back to the parties to seek any comment.

### Main Issues

4. The main issues are:
  - whether there is a demonstrated operational need for the development; and,
  - the effect of the scheme with regard to flood risk.

### Reasons

#### *Operational Need*

5. The appeal site is located within the open countryside. Policy PG6 of the Cheshire East Local Plan Strategy 2017 (CELPs) sets out that within such areas, only development that is essential for the purposes of agriculture, forestry or for other uses appropriate to a rural area will be permitted.
6. Policy RUR1 of the Site Allocations and Development Policies Document 2022 (SADPD) is concerned with new buildings for agriculture and forestry. It notes that such buildings will only be permitted where they accord with a set criterion.

Critically, a long-term need for the development in connection with an agricultural enterprise must be demonstrated. The proposal must also make best use of existing infrastructure, and the new building must be restricted to the minimum level reasonably required for the existing or planned operation of the enterprise. Proposals must also not unacceptably affect the amenity and character of the surrounding area and provide appropriate landscaping and screening.

7. The appeal is accompanied by a Supplementary Agricultural Justification Statement, which seeks to explain the claimed requirements for machinery storage, hay and forage storage, ancillary storage for fencing materials, fertilisers and seed stock, together with a workshop area. At the time of my site visit, I noted a small number of horses, some chickens, a pair of goats, geese and an individual sheep within the appeal site and in other areas of land owned by the appellant. Some machinery was stored within the building in question, along with other machinery located outside within the wider premises. Whilst not located within the appeal building, it is not unreasonable to assume that given the time of day of my visit, this machinery had been utilised prior to my arrival and were left outside for later use.
8. The Supplementary Agricultural Justification Statement provides an estimate of hay and forage yields. However, these figures are derived from average UK grassland production rates. They are not specific to the agricultural enterprise operating at the appeal site. No evidence has been provided regarding any historic yields from the holding, nor are there any site-specific projections to substantiate any future production or usage levels. The statement also identifies six individual items of machinery, which it states form part of the appellant's inventory either currently or within the foreseeable operational cycle. The reference to a "foreseeable operational cycle" suggests that not all of the listed machinery is presently owned by the appellant.
9. The Appeal Statement (prepared by Lambert Smith Hampton, dated May 2026) further asserts at paragraph 5.2 that the building has been erected, in part, to provide shelter for livestock. Whilst I recognise that the operational needs of a farming enterprise may evolve in response to seasonal factors, weather conditions, and business opportunities, it is nevertheless necessary for an appellant to provide evidence demonstrating that the proposed development is required to support the activities claimed to demonstrate compliance with Point i of Policy RUR1 of the SADPD. During my site visit, the building was set up with no internal provision for livestock, other than a small area for one individual sheep. It is therefore difficult to conclude that the building is indeed required for the keeping of the livestock identified as being present during my site visit. Consequently, there is insufficient evidence to conclude that the building is indeed required to provide livestock shelter.
10. The proposal is not supported by a business plan, operational assessment, investment strategy, procurement timetable, livestock management proposal, financial forecast, purchase agreement, or any other substantive evidence demonstrating how the enterprise currently operates, its long-term viability, or the necessity for the proposed building. While reference is made to storage and operational requirements, no clear justification has been provided to explain why the listed machinery and equipment are required in connection with the specific enterprise at the appeal site, when they are expected to be acquired, or how they

relate to the future operation of the business. Equally, there is no evidence of a committed livestock enterprise over a significant period. Consequently, insufficient information has been submitted to demonstrate a clear and demonstrable operational need for the proposed development, or that the claimed storage and operational requirements are justified by the needs of the agricultural business.

11. Therefore, the absence of such evidence on the matters raised above collectively leads me to the conclusion that there is no genuine, demonstrated need for a new agricultural building to further support an agricultural enterprise. Therefore, the development would conflict with Point i of Policy RUR1 of the SADPD.
12. Through the exploration of the evidence before me, it is clear that there are existing buildings sited in other land owned by the appellant. During my site visit, I noted that these appeared to be utilised for the storage of horses and general equipment. However, in line with Policy RUR1, the proposed development must set out how the proposals make best use of existing infrastructure, such as existing buildings. The evidence before me does not do this. Therefore, I also find conflict with Point ii of Policy RUR1.
13. Point iii of Policy RUR1 of the SADPD requires that new agricultural buildings are restricted to the minimum level reasonably necessary to support the planned operation of the enterprise. As set out above, the absence of convincing and substantive evidence leads me to conclude that a functional need for a new agricultural building at this location has not been satisfactorily demonstrated. In the absence of a clearly evidenced operational requirement, I am unable to conclude that the scale and provision of the building represents the minimum level reasonably necessary for the operation of the enterprise.
14. Point iii of Policy RUR1 further requires that new buildings are well-related to one another and to existing buildings, thereby avoiding isolated or sporadic forms of development in the countryside. In this case, the building is positioned slightly away from the existing stables located within the appeal site. However, this is not at a position so far away that it could reasonably be described as isolated from these existing structures. Consequently, I find that the proposal would satisfy this specific requirement of Point iii of Policy RUR1. However, it would fail to satisfy the first element of Point iii, as set out in my reasoning within the paragraph above.
15. The Council have not cited conflict with Points iv or v from Part 1 of Policy RUR1 of the SADPD. However, for completeness, I have undertaken an assessment on these points. The building is constructed in an appearance of a typical agricultural building. It would not appear particularly dominant in the landscape when viewed from public vantage points. Owing to its physical separation from neighbouring residential properties, there would be no clear impact upon the living conditions of the occupiers of these properties. Therefore, the development would not conflict with Points iv or v of Part 1 of Policy RUR1 of the SADPD.
16. To conclude, the development would conflict with Points i, ii and iii of Part 1 of Policy RUR1 of the SADPD, along with Policy PG6 of the CELPS. The requirements of these policies have been outlined throughout this main issue. The proposal would not however conflict with Policies SD2 and SE1 of the CELPS, along with Policy GEN1 of the SADPD. Collectively, these policies seek for development to make a positive contribution to their surroundings whilst following

a set of design and sustainable development principles, amongst other considerations.

### *Flood Risk*

17. The appeal is accompanied by a Flood Risk Assessment (FRA) (prepared by GeoSmart Information). The FRA confirms that the proposed development is located within Flood Zone 3b. Flood Zone 3b comprises the functional floodplain, where floodwater is expected to flow or be stored during flood events. Annex F of the Framework classifies the proposed development as a less vulnerable use. Importantly, the FRA acknowledges that the development's location within Flood Zone 3b is contrary to national policy, which does not permit less vulnerable development within the functional floodplain.
18. Policy F5 of the Framework requires the application of the Sequential Test, the purpose of which is to direct development towards areas with the lowest probability of flooding. The appellant contends that the search area for reasonably available alternative sites should be restricted to land within their ownership that is capable of accommodating the building and serving the operational needs of the holding.
19. The submitted FRA notes that the proposed building is located within Flood Zone 3b and acknowledges that, from a flood risk perspective, a location within Flood Zone 3a would be preferable. The appellant, however, maintains that the proposed siting is necessary because the building must be closely associated with the existing operational area and its intended use. It is argued that alternative locations within the appellant's landholding that may be at a lower risk of flooding would be less practical and less accessible, reducing the efficiency of the operation. On that basis, the appellant contends that there are no reasonably available alternative sites capable of meeting the operational requirements of the development.
20. I have had regard to the appellant's claim that relocating the building would adversely affect the efficiency and viability of the agricultural operation. On this basis, it is argued that the Sequential Test is satisfied because no other suitable location exists within the ownership. However, I am not persuaded by this argument. The evidence before me does not demonstrate a clear operational need for the development or establish that the proposed building is necessary to support a viable agricultural enterprise. Consequently, I am not convinced that locating the development in an area of lower flood risk would prejudice an agricultural operation to the extent claimed, as the actual operation has not been outlined and demonstrated with sufficient rigour.
21. Even if the Sequential Test were considered to be satisfied, Policy F6 of the Framework remains a significant consideration. Paragraph 1(a) states that development should be refused where the proposed use is incompatible with the level of flood risk. Annex F, Table 3 of the Framework identifies whether development is appropriate within different flood zones and whether the Exception Test applies. Crucially, the table makes clear that less vulnerable development within Flood Zone 3b should not be permitted.
22. I have nevertheless considered the benefits advanced by the appellant. It is submitted that the development would support the continuation of a viable farming operation and meet a genuine rural business need. However, for the reasons set out above in the first main issue, the evidence does not substantiate either claim.

Furthermore, whilst the building would not be used for permanent habitation, it would involve regular human activity. If the operation did actually function at a certain scale, the building would be accessed frequently by individuals despite being located within the functional floodplain. The Framework seeks to avoid placing vulnerable development in areas subject to the highest flood risk. Given that the proposed development falls within a category that is explicitly identified as inappropriate within Flood Zone 3b, I conclude that the proposal is unacceptable in flood risk terms.

23. In summary, the proposed development would conflict with the flood risk provisions of the Framework. The proposal therefore conflicts with Policies SD2 and SE13 of the CELPS and Policy ENV16 of the SADPD, which seek to steer development away from areas at high risk of flooding, ensure that development does not increase flood risk either on-site or elsewhere, and secure opportunities to reduce overall flood risk where possible.

### **Conclusion**

24. For the reasons given above and in taking all material considerations into account, I conclude that the appeal should be dismissed.

*J Smith*

INSPECTOR